

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 17, 2026 TIME: 8:30 A.M.

Therefore, the matters specified in requests for admission, set one, attached to the Declaration of Mr. Langedyk as Exhibit 1, will be deemed admitted unless defendant provides proof she served responses in substantial compliance with Code of Civil Procedure section 2033.220. (Code Civ. Proc., § 2033.280, subd. (b).)

No. 25CV02283

CHASE BANK, N.A. v. FARLEY

DEFENDANT'S MOTION TO DISMISS

PLAINTIFF'S MOTION FOR ORDER THAT MATTERS IN REQUESTS FOR ADMISSIONS OF TRUTH OF FACTS BE DEEMED ADMITTED

The motion to dismiss is denied. The motion for an order deeming admitted the truth of facts in the request for admissions is granted unless defendant provides proof of service of responses in substantial compliance with Code of Civil Procedure section 2033.220.

I. BACKGROUND AND MOTIONS

This is a limited jurisdiction collections case. The complaint alleges breach of contract and seeks \$15,567.14 in damages against self-represented defendant, who filed an answer on August 21, 2025.

Plaintiff filed a motion for an order that matters in requests for admissions be deemed admitted. The hearing on this motion occurred on July 10, 2026. The court's tentative ruling was to grant plaintiff's motion. However, the court noted that defendant had filed a motion to dismiss which was pending. The court continued the discovery hearing August 17, 2026, along with defendant's motion to dismiss so that both could be heard on the same day.

A. Defendant's motion to dismiss

First, defendant failed to file a proof of service showing that the motion was served on plaintiff. "Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing." Proof of service of the moving papers must be filed no later than five court days before the hearing date. (Code of Civ. Proc. § 1005, subd. (b); Cal. Rules of Ct., rule 3.1300(c).)

Even assuming the motion was properly served, it would be denied. Defendant asks the court to dismiss the case based upon "lack of evidence" and plaintiff's inability to produce the contract at issue. Defendant asserts she was the victim of identity theft. It appears defendant is

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seeking the court to summarily adjudicate plaintiff's claims. However, she did not bring a motion for summary judgment. The motion to dismiss is denied for these reasons.

B. Plaintiff's motion for an order that matters in requests for admission of truth of facts be deemed admitted

On October 30, 2025, plaintiff served requests for admission set one, on defendant, attached to the declaration of Brian Langedyk as Exhibit 1. Plaintiff states defendant has failed to respond to the requests. (Decl. of Langedyk at ¶ 3.) The requests were served on defendant at 5888 Fern Flat Rd., Aptos, CA, which is the same address defendant used when filing her answer.

Defendant filed a late opposition on June 30, 2026, arguing that she does not have an obligation or legal duty to respond to the requests because plaintiff has not provided a valid contract. Defendant does not provide a reason for her failure to respond to the requests.

“If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2033.030 of the Code of Civil Procedure.” (Code Civ. Proc., § 2033.280, subd. (b).) Monetary sanctions are mandatory if requested. (Code Civ. Proc., § 2033.280, subd. (c).)

In a supplemental opposition, filed on August 6, 2026, defendant asserted she answered and responded to all interrogatories. She did not file a copy of the responses nor proof of service the same and the court does not have any input from plaintiff's counsel as to whether they did receive responses to the requests. Therefore, the matters specified in requests for admission, set one, attached to the Declaration of Suman as Exhibit 1, are deemed admitted unless defendant provides proof she served responses in substantial compliance with Code of Civil Procedure section 2033.220. (Code Civ. Proc., § 2033.280, subd. (b).)